

		"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (<i>Clauson v. Superior Court</i> (1998) 67 Cal. App. 4th 1253, 1255.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (<i>Smith v. Sup. Ct.</i> (1992) 10 Cal.App.4th 1033, 1042.) Section 3294 permits punitive damages against a corporate employer if the employee is sufficiently high in the corporation's decision-making hierarchy to be an "officer, director or managing agent." (Civ. Code, § 3294, subds. (a), (b); <i>White v. Ultramar, Inc.</i> (1999) 21 Cal.4th 563, 572, 88 Cal.Rptr.2d 19, 981 P.2d 944 (<i>White</i>); see also <i>Cruz v. HomeBase</i> (2000) 83 Cal.App.4th 160, 167, 99 Cal.Rptr.2d 435 ["'Managing agents' are employees who 'exercise [] substantial discretionary authority over decisions that ultimately determine corporate policy.'" (Citation.)"] (italics omitted)].) In employment discrimination cases, juries have found that corporate decisions that are discriminatory under FEHA are sufficient to constitute conduct for which punitive damages are available. For example, in <i>Roby v. McKesson Corp.</i> (2009) 47 Cal.4th 686, a strict attendance policy that did not reasonably accommodate persons with disabilities was sufficient for a jury to award punitive damages. (<i>Id.</i> at 713.) The court reasoned that due to the employee being terminated because of the attendance policy, the employee suffered emotional and mental distress as well as lost her financial savings after termination, leaving her financially vulnerable. (<i>Ibid.</i>) As such, a jury could reasonably infer that the company's adoption of such a strict and flawed attendance policy was "conduct that evinced an indifference to or a reckless disregard of the health or safety of others" and constituted oppression or malice. (<i>Ibid.</i>) Further, a corporate policy that reduced compensation for older managers after an employee filed an EEOC complaint constituted conduct for which punitive damages were available. (<i>Wysinger v. Automobile Club of Southern California</i> (2007) 157 Cal.App.4th 413, 428.) A jury could reasonably infer that the policy was a pretext to deny the employee a transfer and created a hostile work environment in retaliation for the EEOC complaint. (<i>Ibid.</i>) Here, Defendant identifies various allegations relating to punitive damages and argues that those allegations, in and of themselves, are conclusory and insufficient to allege punitive damages. In doing so, Defendant fails to read the complaint and all of Plaintiff's allegations as a whole. The court finds that Plaintiff has alleged sufficient ultimate facts to state a claim for disability discrimination, from which punitive damages would be an available remedy. Similar to <i>Roby</i>, Plaintiff alleges that he suffered a disability, requested multiple accommodations, was denied accommodation and harassed for doing so, including the use of racial slurs, and was terminated for Plaintiff's requests for accommodation, reports of injury and pain, and perceived filing for workers' compensation. A jury could reasonably infer from these facts that terminating Plaintiff for asking for a medical accommodation was a <i>policy</i> that did not reasonably accommodate persons with disabilities—i.e., "conduct that evinced an indifference to or a reckless disregard of the health or safety
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		of others” according to the jury in <i>Roby</i>. Further, given that Plaintiff alleges that he was terminated for requesting a medical accommodation and for perceived filing of workers’ compensation, a jury could reasonably infer that Defendant terminated Plaintiff in retaliation for Plaintiff’s exercising his rights—i.e., conduct for which a jury found was oppressive under <i>Wysinger</i>. As such, Plaintiff has sufficiently pled “the ultimate facts showing an entitlement to [punitive damages.]” (<i>Clauson, supra</i>, 67 Cal. App. 4th at p. 1255.) The motion is therefore DENIED. Moving Defendant to give notice.
10	Lampley v. Hermosa 2019 LP	The court has been made aware that Plaintiff is now deceased. A deceased individual has no legal existence. (See <i>Tanner v. Best’s Estate</i> (1940) 40 Cal.App.2d 442, 444-445 [holding that judgment could not be entered against the “estate” of a decedent, as the “estate” “is neither a natural nor artificial person [but rather] merely a name to indicate the sum total of the assets and liabilities of a decedent”]; see also Code Civ. Proc., §§ 377.40 <i>et seq.</i> [governing claims against decedents]. Therefore, proceedings are suspended indefinitely pending appointment of a personal representative of decedent/plaintiff per CCP 385. In the case of a self-represented plaintiff, if no personal representative is appointed, the case cannot proceed until such a representative is substituted. The court must suspend all further proceedings until the executors or administrators are qualified and substituted as parties (Matter of Estate of Page, 50 Cal. 40 (1875))[4]. If the deceased plaintiff’s estate has a personal representative, that representative can continue the action on behalf of the estate (Adams v. Superior Court, 196 Cal.App.4th 71 (2011))[5]. Status conference shall occur on December 11, 2025, at 9:00 a.m. in this department. The moving party to give notice.
11	Mass v. CTG Auto, LLC	Off calendar.
12	Oh v. Giving Tree Lending	Plaintiff April Oh moves for order compelling Defendant Giving Tree Lending to comply with this court’s October 24, 2024 order and awarding monetary sanctions against Defendant and its attorneys. For the following reasons, the motion is GRANTED. The court may impose monetary sanctions on any party engaging in the misuse of the discovery process, including the reasonable costs and fees incurred as a result of the failure to obey (including fees on the sanctions motion). (See Code Civ. Proc., § 2023.030(a).) Disobeying a court order to provide discovery is a misuse of the discovery process. (Code Civ. Proc., § 2023.010(g); <i>Van Sickle v. Gilbert</i> (2011) 196 Cal.App.4th 1495, 1516.) Once a party is ordered by the court to